

**See also:** The *Lex Mercatoria* 74–77 ■ The Statute of Anne 106–107 ■ The Federal Trade Commission 184–185  
■ The WIPO Copyright Treaty 286–287



drawing board, these benefits would be lost—and there would be no incentive for inventors to spend their time and money developing ideas, let alone sharing them with others.

### Patents for invention

As trading networks expanded across Europe and commercial and political rivalry between Italy's city-states grew, it became clear that inventors needed to be protected by recognizing their ownership of an idea. Ideas had to become property. Inventors had to be given an exclusive legal claim so that others might not copy inventions without their permission. And so the idea of patents slowly emerged.

The first known patent was issued in Florence in 1421. The recipient was the architect Filippo Brunelleschi, famous for designing the dome of Florence's cathedral, although his patent was not for an architectural innovation, but for a special barge to carry building materials to the cathedral via the

River Arno. Unfortunately, in 1427, Brunelleschi's craft sank on its first voyage. The idea of patents was abandoned for a while in Florence, but guilds of craftsmen and artists wielded considerable power at the time, and members' "ownership" of their own ideas and innovations was protected by the private rules of these guilds.

### The Venetian Patent Statute

It was in Venice that the idea of legal patents really emerged. The city first began issuing one-off individual patents, similar to the one awarded to Brunelleschi in Florence. Then, on March 19, 1474, Venice's governing Senate issued the first general patent law. This landmark statute established a system that would protect inventors by the free registration of patents.

The Venetian system had most of the features associated with patents today: an invention must in some way be useful; the term of a patent is limited to a fixed number of years; the right to use

**The dome of Florence's cathedral** was built without a central support. Its innovative design includes an inner and outer shell with interlocking arches to prevent the dome from expanding.

a patent can be transferred both during the life of the patent holder and after; and a patent is lost if it is not used within a certain time, or if the invention a patent refers to is proven not to be the first of its kind after all. Each of these criteria underpins modern patent law.

### Ingenious contrivances

In colloquial language, the Venetian statute provided protection for "any new and ingenious device, not previously made." It declared confidently that Venice had the "most clever minds, capable of devising and inventing all manner of ingenious contrivances." It then asserted that these clever minds would only exert themselves to make things that would benefit the city if their ideas were protected. »

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In Venice ... they reward and cherish every man that brings in any new art or mystery whereby the people may be set to work.

**Sir Thomas Smyth**

*Discourse on the Common Weal of this Realm of England, 1581*

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